

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The Motion is **granted**. The Court will execute the proposed order lodged on September 24, 2025. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. The Court will set the date in the proposed order. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Five percent (5%) of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. No appearance is required at the hearing on March 4, 2026.

6. 9:00 AM CASE NUMBER: C24-00225
CASE NAME: MONICA DUARTE VS. JORGE FIGUEROA
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: FIGUEROA, JORGE

TENTATIVE RULING:

Summary

Defendants Sunshine Retirement Living LLC, Antioch Retirement Resident LP dba Quail Lodge Retirement Community and Jorge Figueroa's ("Defendants") Demurrer to Plaintiff's Second Amended Complaint is **sustained** without leave to amend.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), an opposition to a noticed motion must be filed and served at least nine (9) court days before the hearing. Here, the hearing on Defendants' Demurrer was noticed for March 4, 2026. Nine days before March 4, 2026 is February 19, 2026. No timely opposition was filed on February 19, 2026.

Plaintiff filed a late opposition on February 25, 2026. Counsel claims that he was not provided with timely notice of Defendants' Demurrer. However, the proof of service form filed by Defendants' counsel shows that he was served with this Demurrer on November 14, 2025 by electronic mail. +The Court finds that service was effectuated on Plaintiff's Counsel. Moreover, Counsel's Declaration accompanying Plaintiff's late filed opposition does not contain sufficient facts that support good cause for Counsel's failure to file the opposition timely.

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff made no attempt to seek leave to file their opposition late, and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them." According to Counsel's declaration, he claims that he did not receive notice of the hearing on Defendants' demurrer to the Second Amended Complaint and happened to review the docket and realized that the demurrer was set for hearing. The Court does not consider the late-filed opposition filed by Plaintiff.

7. 9:00 AM CASE NUMBER: C24-03038
CASE NAME: JANE DOE 1 VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
*HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF MOSEBY'S AMENDED CROSS COMPLAINT
FILED BY: JANE DOE 1
TENTATIVE RULING: